

Ref: KSM186/2022/001502

Date: 29th July 2022

RE: POWER OF ATTORNEY

We, Messrs **ENG LEONG TIN CAN MANUFACTURING COMPANY SDN. BHD.** (R.O.C NO. 2435-D) Address: Lot 13, Jalan Industri 3-4, Rawang Integrated Industrial Park, 48000 Rawang, Selangor Darul Ehsan, Malaysia

Do hereby appoint **IRVING ENTERPRISE**, of Bangladesh, Overseas Employment Agency Licensed by Ministry of Labour No. RI-203 to be our true and lawful attorney and recruitment agent in Bangladesh for the purpose of handling all matters associated with the recruitment of workers for employment with our company, to sign all necessary documents and employment contracts required by the laws and regulations of Bangladesh, to arrange for passport and for visa endorsement with the embassy concerned and to make arrangement for the workers' passage to the job site.

This Power of Attorney shall remain valid until the workers arrive at our factory in Malaysia in accordance with our Demand Letter dated 29th July 2022 and approval under KSM No. **KSM186/2022/001502** dated 23rd June 2022.

Signature

Name **Tan Kien Kok**

Designation **Managing Director**

Witnessed in the country of employment by:

Bangladesh Embassy in Kuala Lumpur

Date: 29th July 2022

To:

Irving Kampelma

House-28, Road-01,

Block-1, Barana,

Dhaka-1213, Bangladesh.

Recruiting License No. *RL-213*

Dear Sir,

RE: DEMAND LETTER FOR RECRUITMENT OF WORKERS FROM BANGLADESH (Ref: KSM 100/2022/001502)

Based on the Ministry of Human Resources Reference: KSM 100/2022/001502 on 18th June 2022, we hereby appoint your company to recruit **100 pos** workers for employment with our company and liaise with relevant authorities concerning recruitment.

Our recruitment terms and conditions are as follows:

1. Number of Workers	100 Pos Male Workers
2. Sector	Manufacturing
3. Job Description	General Workers
4. Age	20 - 45 years' old
5. Contract Period	2 Years
6. Wages	
Basic monthly wage	RM1,500/month (RM17.40/day X 26 days)
a) Allowance	RM50/Month
b) Overtime (OT)	_____ Month
Normal day	RM1,500 / 26-days / 8 hours' x 1.3 x 78 hours = RM643.70
(Rest day	RM _____ / 26-days / 8 hours x 2.0 x _____ hours = RM _____)
(Public Holidays	RM _____ / 26-days / 8 hours x 3.0 x _____ hours = RM _____)

Total minimum monthly income: RM2,793.70/month

7. Working days

8. Working hours

9. Contract Period:

a. The duration of contract shall be for a period of two (2) years from the date of arrival of worker

b. This Contract may be extended for another additional two (2) years by mutual agreement of

both parties.

10. Payments to be borne by the employer:

The Employer shall be responsible for the following payments:

- a. Security deposits as required by the Department of Immigration, Malaysia.
- b. Processing fees imposed by the Government of Malaysia.
- c. Visit Pass (Temporary Employment).
- d. Employment Injury Scheme under the Employees' Social Security Act 1969 and if applicable, the Foreign Workers Health Insurance Scheme (SPKPA) or any other insurance scheme as may be adopted by the Government of Malaysia.
- e. Medical Examination in Malaysia (HOMEM).
- f. Security Screening.
- g. Medical Examination in Bangladesh.
- h. One Stop Centre, VLN, MY-MOV.
- i. Round Trip Air Ticket.
- j. Attention fee by Embassy of Bangladesh in Malaysia.
- k. Service charge by Malaysian Recruitment Agency and Bangladesh Recruitment Agency. *(Provided that item (i) and (j) shall be reimbursed by the employer to the worker together with the payment of first month salary of the Worker)*

11. Wages:

- a. This basic wage shall comply with the national minimum wage of Malaysia.
- b. Wages shall be paid by the Employer on a monthly basis not later than seventh day after the last day of the wage period.
- c. The monthly wage shall be paid to an account at a bank, finance company, financial institution or other institutions. Sourced or established under the banking and Financial Institutions Act 1989 [Act 372] of the Worker.
- d. Every Employer shall furnish to every Worker employed by him in a
 - ii. Separate statement or card the particulars relating to details of wages.
 - iii. And other allowances earned during each wage period.

12. Rest Day:

- a. The Worker shall be entitled to weekly rest day.
- b. In the event that the Worker, upon the request by the Employer, agrees to work on such rest day, the worker shall be paid at rate of:
 1. 0.5 for less than 4 hours.
 2. 1.0 for 4 to 8 hours.

13. Annual Leave, Sick Leave and Public Holidays:

Annual Leave

- a. 8 days for the first two years of service; for period of service between two years to five years the employee would qualify for 12 days of leave; and for services of more than five years the employee qualifies for 14 days of leave.
- b. The Employer upon application from the Worker may grant 15-days leave in case of death of close family members (parents, spouse and children) of the Worker. The leave may be deducted from the accumulated annual leave of the Worker, or in cases where

accumulated annual leave is not sufficient, the Employer may grant unpaid leave to the Worker.

Sick Leave:

14 days for each year of service for service less than two years, and 18 days for services of two years to five years and 22 days annually for services exceeding five years. In cases of hospitalisation, the employee qualifies for 60 days leave in each calendar year.

Public Holidays:

The employee shall be entitled to paid public holiday for a total of 13 days in any one year of service that must include the following five days:

- 1) The National Day
- 2) The Birthday of the Yang Di-Pertuan Agong
- 3) The Birthday of the Ruler of the State as the Case May Be And /Or the Federal Territory a Day Where the Employer is Working in Such an Area,
- 4) Worker's Day
- 5) Malaysia Day
- 6) And another six more days appointed as a public holiday for that particular year under section 3 of the Holidays Act 1951 [Act 109] In the event the Worker, upon the request by the Employer, agrees to work on such public holiday, the Worker shall be paid in accordance with the labour laws in Malaysia.

14. **Employment Injury Scheme** under the Employees' Social Security Act 1969 [Act 4] under the Social Security Organization and if applicable the Foreign Workers Health Insurance Scheme (SPKFA) or any other insurance scheme as may be adopted by the Government of Malaysia.

15. Accommodation:

- a. The Employer shall provide the Worker with decent accommodation with basic amenities that meet the stipulated minimum standards on safety and health.
- b. The Employer upon approval by the Director General of Labour of Malaysia is allowed to impose a wage deduction of RM50 per month or any approved amount for the purpose of providing such accommodation as stipulated under the Section 24(6)(c) of The Employment Act 1955 of Malaysia.

16. Transportation:

Accommodation within Factory premises

17. Levy:

The payment of worker's levy shall be borne by the employer

- Manufacturing, Mining and Quarry, Services and Construction – RM1,000
- Agriculture and Plantation – RM500

18. Education:

The Employer is entitled to make deduction for not more than 50% in a month from the Worker's wages in the event of any monetary advances in accordance with the labor laws in Malaysia.

19. Renewal of Worker's Visit Pass (Temporary Employment):

- a. The Employer shall renew Worker's Visit Pass (Temporary Employment) 3 months prior to the expiry of the said pass. All costs related to the renewal shall be borne by the Employer.
- b. Any penalty or compound imposed due to the failure of the Employer to do so shall be borne by the Employer.

20. Air Ticket:

The travelling expenses from Bangladesh to any agreed point of entry in Malaysia and the expenses from any agreed point of exit in Malaysia to Bangladesh shall be borne by the Employer upon completion of the Contract of Employment.

21. Safekeeping of the Passport:

- a. The Employer shall not keep the passport of the Worker in his custody.
- b. The passport of the Worker shall be in his/her custody at all times. In the event the passport is lost or damaged while in the possession of the Worker, The Worker shall bear all related costs for the replacement of his/her passport.
- c. The Worker shall submit the passport to the Employer for the following purposes:
 - I. Medical Screenings,
 - II. Application of Visit Pass (Temporary Employment)
 - III. Application of Foreign Worker's Identity Card, and
 - IV. Renewal of Visit Pass (Temporary Employment)
- d. The passport shall be returned to the Worker upon completion of these purposes.
- e. In the event that the Worker's passport is lost or damaged while in the custody of the Employer for the above-mentioned purposes, the Employer shall bear all related costs for the replacement of the Worker's passport.

22. Outstanding Wages:

In the event of the Worker is to be repatriated before the expiry of this Contract of Employment, the Employer shall pay all outstanding basic wages and all other payments owed to the Worker subject to the labour laws in Malaysia.

23. Receiving Worker:

The Employer shall ensure to receive the Worker upon arrival at the entry point in Malaysia within 8 hours upon arrival. In case, the Employer fails to do so, he/she shall be liable to bear all the expenses incurred during the waiting period.

24. Female Worker:

Ensure additional measures as may be required for meeting special needs of female workers with regards to working conditions.

25. Furnishing information to the Department of Labour Persekutuan Malaysia:

The Employer shall furnish to the Department of Labour Persekutuan Malaysia particulars of the Worker including the Worker's dependent within 14 days from the commencement of the employment.

26. Repatriation:

- a. The repatriation cost of the Worker from their place of work to their original exit point in Bangladesh shall be borne by the Employer under the following circumstances:
 - i. At the completion of this Contract of Employment;
 - ii. Termination of this Contract of Employment by the Employer other than non-compliance of the terms and conditions of this Contract of Employment by the Worker; and
 - iii. Termination of this Contract of Employment by the worker due to non-compliance of the terms and conditions of this Contract of Employment by the Employer.
- b. The Worker shall be responsible to bear related expenses under the Malaysian Laws and expenses relating to repatriation for circumstances that are not mentioned in paragraph 26(a).

27. Repatriation in the case of death of the worker:

- a. In the event of death of the worker, the Employer shall be responsible for the costs of repatriation of the remains.
- b. If the funeral takes place in Malaysia with the consent of the family of the deceased, the Employer shall be responsible for the costs of the funeral and repatriation of the remains.
- c. The Employer shall promptly settle the due salary, insurance and other benefits to the family of the deceased.

28. Medical Examination in Malaysia (POMEPA):

The Employer shall ensure that the worker undergoes medical examination as follows:

- a. Within 30 days from the date of arrival;
- b. Once every year for the first 2 years of employment; and
- c. Every alternate 2 years of employment.

29. Restriction:

- a. That the Employer shall not worry with any Malaysian and shall not participate in any political activities or activities of those connected with political organizations in Malaysia.
- b. That the Employer shall not change his employment during the period of this Contract of Employment and shall not carry out or do other business.
- c. That if the competent authority concerned finds the Worker engaged in any illegal, subversive or criminal activities, then the Worker shall be dismissed from the job and shall be repatriated to Bangladesh at Worker's own expenses.

30. Termination of Service:

- a. In the event the Employer intends to terminate this Contract of Employment, The Employer shall give adequate written notice as stipulated under the labour laws or wages in lieu of such notice of his intention to terminate such contract, and shall provide airfare to Bangladesh for the Worker.
- b. In the event the Worker intends to terminate this Contract of Employment, the Worker shall give adequate written notice as stipulated under the labour laws or wages in lieu of such notice of his intention to terminate such contract, and the Worker shall bear the cost of airfare to Bangladesh.

I hereby declare all information above the whole true nothing but the true. Thank You.

Yours Faithfully,

Signature of Employer

Name

Designation

NRIC No

Stamp

Attested By:

Department of Labour Petanahat Malaysia

Date

Department Stamp

Consular Division, Ministry of Foreign

Affairs, Malaysia

Date

Department Stamp

3rd November 2022

SADIA INTERNATIONAL (RL-492)

House #132 (1st Floor), Road # 13/c,

Block # E, Banani, Dhaka-1213, Bangladesh

Email: sadiachondhury@gmail.com

Dear Sir,

RE: AUTHORIZATION LETTER TO MOHD AREEFIN RESOURCES (M) SDN BHD (1256338-A)

KDN Approval No: KSM/FWCMS/YSK/40000045

Workers Quantity: 82

We refer to the above matter. We hereby appoint Mohd Areeffin Resources (M) Sdn Bhd (1256338-A) to supply Bangladeshi Workers to our company as our lawful Attorney to process Workers Recruitment according to the Demand Letter.

Kindly assist him on behalf of us and we really appreciate your cooperation given to us.

Thank You.

Yours faithfully

NORTHERN CONSTRUCTION & INTERIOR SDN BHD

DIRECTOR